

23STCV23754 23STCV23754

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-09-17

Motion: PLAINTIFFS' MOTION TO COMPEL DEPOSITION OF DEFENDANT WESTWOOD BLVD PROPERTIES, LLC'S PERSON MOST QUALIFIED FOR AUGUST 2022 THROUGH AUGUST 2024; REQUEST FOR MONETARY SANCTIONS IN THE AMOUNT OF \$1,573.41 AGAINST DEFENDANT WESTWOOD BLVD PROPERTIES, LLC AND RESNICK & LOUIS, PC JOINTLY AND SEVERALLY

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C731%2C09%2F17%2F2026

Source SHA-256: 6ead841d00f9546606595acf50bba75efcb45db5cb9a0776f71ac3f60827a406

Case Number: 23STCV23754 Hearing Date: September 17, 2026 Dept: 731

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS

ANGELES - CENTRAL DISTRICT

KIMBERLY GORDON, an individual;

LEE QUINONES, an individual; MADISON QUINONES, an individual.

Plaintiff,

vs.

WESTWOOD BLVD PROPERTIES, LLC,

a limited liability corporation; OPTIMUS PROPERTIES, LLC, a limited liability corporation; OPTIMUS PROPERTY MANAGEMENT, LLC, a limited liability corporation; and Does 1-30, inclusive.

Defendants.

)

)

)

Dept. 731

September 17, 2026

8:30 a.m.

Matter No. 11

Moving Party: Defendants, Westwood Blvd Properties, LLC, Optimus Properties, LLC, and Optimus Property Management, LLC

Opposing Party: Plaintiff, Kimberly Gordon, Lee Quinones, Madison Quinones

Notice: OK

Background Facts

This action arises from a dispute concerning residential habitability and Defendants' alleged failure to properly maintain an apartment unit at 3655 Westwood Blvd., Unit 7, Los Angeles, California.

Pleadings

Plaintiffs Kimberly Gordon

("Gordon"), Lee Quinones ("Lee"), and Madison Quinones ("Madison") (collectively "Plaintiffs") sue Westwood Blvd Properties, LLC ("Westwood Properties"), Optimus Properties, LLC ("Optimus Properties"), and Optimus Property Management, LLC ("Optimus Management") (collectively, "Defendants") pursuant to a March 13, 2025, First Amended Complaint ("FAC") alleging tortious breach of implied warranty of habitability, breach of contract, negligence, unfair business practices, violations of various Los Angeles Municipal Code provisions, and violations of California Civil Code sections governing landlord obligations.

The claims arise from Plaintiffs' long-term tenancy at the subject property and Defendants' alleged failure, beginning in mid-2021, to address escalating habitability problems, including repeated water leaks, floods, sewer overflows, excess moisture, mold, mites, termite infestation,

faulty plumbing, electrical hazards, lack of heating, and structural defects. Multiple City inspections allegedly documented code violations, while Defendants refused to perform adequate remediation, environmental testing, or required habitability-plan and relocation measures. Plaintiffs assert Defendants continued collecting rent despite official repair orders, engaged in harassment—including improper demands related to emotional-support animals—and caused injuries through unsafe conditions. Based on these alleged failures, Plaintiffs seek damages, restitution, and punitive relief.

Motion Before the
Court

Now before the Court is Plaintiff's motion to compel the further deposition of a person most qualified ("PMQ") for Westwood Properties on questions relating to the time period of August 2022 through August 2024, arguing that at the prior two deposition sessions, Westwood Properties only supplied a PMQ qualified to speak as to matters between 2020 and August 2022 and August 2024 to the present. The motion also seeks monetary sanctions in the modest amount of \$1,573.41.

Defendants initially opposed Plaintiffs' motion on June 25, 2026, arguing chiefly that the Westwood Properties PMQ who Plaintiff deposed on April 23, 2026, and purportedly again on May 29, 2026—Jerome Mikelson—is the only PMQ available for Westwood Properties, that Mr. Mikelson discharged the PMQ duties for Westwood Properties by testifying on those dates, and that Plaintiffs can depose the other Defendants' PMQs for the periods of 2022 to 2024.

Plaintiff's July 1, 2026, reply disputes the position that Mr. Mikelson discharged the PMQ duties for Westwood Properties where his testimony was limited to "2020 to 2022 and the 2024 to current" [sic].

On July 8, 2026, the hearing on Plaintiff's motion was continued to September 17, 2026, based on the lack of an assigned judicial officer over this Department.

On September 2, 2026, Defendants filed a supplemental opposition to Plaintiffs' motion.

On September 9, 2026, Plaintiffs filed a supplemental reply to Defendants' supplemental opposition, arguing among other things that the supplemental opposition is not authorized by law or court order.

Plaintiffs' motion is now before the Court.

Motion to Compel
Deposition; Request for Sanctions

Global Preliminary Considerations

i. Opposition
and Evidence in Support Thereof

The Court declines to consider any factual propositions advanced in Defendants' June 25, 2026, opposition.

A memorandum supporting a motion must include a concise statement of the law, arguments, and evidence relied on and a discussion of the statutes, cases, and textbooks cited in support of the movant's position. (Cal. Rules of Court, rule 3.1113(b), emphasis added; see, e.g., *Nationwide Ins. v. Tipton* (2023) 91 Cal.App.5th 1355, 1365 [trial court had discretion to ignore arguments that defendants did not properly present in their memorandum of points and authorities in opposition to plaintiff's petition].)

Here, no supporting declaration or documents accompany Defendants' June 25, 2026, opposition.

Accordingly, the Court declines to consider any factual propositions raised in that paper.

ii. Supplemental
Opposition and Reply

The Court declines to consider the supplemental opposition and reply to the extent that these papers (1) go beyond describing updated factual background for the motion and litigation before the

Court and (2) are not supported by evidence.

Motion to Compel

Deposition

i. Mootness

The Court declines to find that

Plaintiffs' motion was mooted by the alleged taking of a second PMQ deposition session after Plaintiffs' motion was filed.

Plaintiffs filed the motion on May

27, 2026. Defendants assert that a further deposition session occurred on May 29, 2026. However, Defendants' opposition does not contain a supporting declaration establishing the facts necessary to determine that the subsequent deposition fully resolved the issues presented by the motion.

Moreover, Plaintiffs' July 1, 2026

reply makes clear that the central dispute remains whether Westwood Blvd Properties has complied with its obligation to provide a PMQ capable of answering questions concerning the period from August 2022 through August 2024.

Whether subsequent discovery has

satisfactorily resolved the issues raised by a motion is a matter within the trial court's discretion. (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 409.)

The Court therefore finds that the

motion is not moot.

ii. Preliminary

Note re: Nature of Motion

Here, Plaintiffs' motion is noticed pursuant to Code of

Civil Procedure section 2025.450 (see Motion, p. 3), with Plaintiffs arguing that Jerome Mikelson did not answer certain questions at deposition (see Motion, 8:3-10), and Defendants arguing that Mr. Mikelson did in fact respond to questions at the deposition sessions (Opposition, pp. 2-3, 3-5). The substance of the requested relief, however, concerns further answers at a deposition.

A trial court may construe a motion bearing one label as a different type of motion. (Austin v. Los Angeles Unified School Dist. (2016) 244 Cal.App.4th 918, 930.) “‘The nature of a motion is determined by the nature of the relief sought, not by the label attached to it. The law is not a mere game of words. ... The principle that a trial court may consider a motion regardless of the label placed on it by a party is consistent with the court's inherent authority to manage and control its docket.’ [Citation.]” (Ibid.)

Here, it is clear from the face of the record and the nature of the relief sought that Plaintiffs are seeking to compel further answers at a third deposition session for the Westwood Properties PMQ, specifically because at the past deposition sessions, the PMQ was unable to address questions relating to a period from 2022 to 2024.

Consequently, the Court reads this motion as being brought pursuant to a counterpart of the statute pursuant to which Plaintiff brought this motion, i.e., Code of Civil Procedure section 2025.480 as opposed to section 2025.450.

iii. Meet and Confer

A motion to compel deposition answers or production pursuant to Code of Civil Procedure section 2025.480 must be accompanied by a meet and confer declaration under Code of Civil Procedure section 2016.040. (Code Civ. Proc., § 2025.480, subd. (b).) A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion. (Code Civ. Proc., § 2016.040.)

Here, the Court determines that sufficient meet and confer efforts preceded the filing of Plaintiffs' motion. (Motion, Burton Decl., ¶¶ 3-14, Exs. 1-7.)

iv. Timeliness

A motion to compel pursuant to Code of Civil Procedure section 2025.480 shall be made no later than 60 days after the completion of the record of the deposition. (Code Civ. Proc., § 2025.480,

subd. (b).) The record is completed once the entire inspection at issue is finished, including the raising of objections during that process. (See *Unzipped Apparel, LLC v. Bader* (2007) 156 Cal.App.4th 123, 134 (Unzipped).) This 60-day timeframe is jurisdictional and if it is not met, the court is in excess of its jurisdiction to act other than to deny the motion. (Id. at pp. 134-136.)

Here, even if the completion of the record took place on April 23, 2026, when the first deposition session took place and Defendants took the 'only 2020 to 2022 and 2024 to the present' position, Plaintiffs' motion was filed on May 27, 2026, well within the 60-day limit.

v. Separate Statement

If the proposed deponent made some response to the deposition notice, then a separate statement must accompany any motion to compel deposition attendance or production. (See Cal. Rules of Court, rule 3.1345(a)(4).) A separate statement is not required when no response has been provided to discovery and when a court has allowed the moving party to submit—in place of a separate statement—a concise outline of the discovery request and each response in dispute. (Cal. Rules of Court, rule 3.1345(b)(1)-(2).)

Here, though no separate statement accompanies Plaintiffs' motion, the Court finds that rule 3.1345(b) is sufficiently satisfied insofar as (1) the Court permits the moving papers to serve in lieu of a separate statement, where (2) those papers confirm that any questions for the period of August 2022 to August 2024 were unanswerable at the deposition, given that Westwood Properties only offered the PMQ for the periods of 2020 to 2022 and 2024 to the present.

vi. Legal Standard

Code of Civil Procedure section 2025.480 authorizes a motion to compel when a deponent fails to answer a question or produce documents, electronically stored information, or tangible things identified in a deposition notice or subpoena, and subdivision (a)

expressly provides that the party seeking discovery may request an order compelling such an answer or production. (Code Civ. Proc., § 2025.480, subd. (a).)

In the event that the court determines that the answer or production sought is subject to discovery, it shall order that the answer be given or the production be made on the resumption of the deposition. (Code Civ. Proc., § 2025.480, subd. (i).)

vii. Discussion

After review, the Court finds in favor of Plaintiffs.

Code of Civil Procedure section

2025.480 authorizes a party to move to compel an answer when a deponent fails to answer a question identified in a deposition notice or subpoena. (§ 2025.480, subd. (a).) Where the Court determines that the requested answer is subject to discovery, the Court shall order that the answer be given on resumption of the deposition. (§ 2025.480, subd. (i).)

The record establishes that, on April 23, 2026, Westwood Properties did not provide a PMQ capable of answering questions concerning the period from August 2022 through August 2024. Defendants contend that the PMQ subsequently testified again and that no other PMQ is available for Westwood Properties. Plaintiffs, however, maintain that the PMQ remained unable to answer questions concerning the disputed period.

The evidence before the Court establishes that Westwood Properties qualified its PMQ testimony to periods before August 2022 and after August 2024. Westwood Properties has not demonstrated why it should be relieved of its obligation to provide a PMQ capable of responding to questions concerning the duly noticed period from August 2022 through August 2024. Nor did Westwood Properties obtain a protective order relieving it of that obligation.

The fact that other defendants may have PMQs who can testify concerning the same period does not, standing alone, discharge Westwood Properties' obligation to produce its own PMQ for matters within the scope of the deposition notice.

The Court also finds that the requested testimony is relevant. The deposition notice and the pleadings establish that testimony concerning Plaintiffs' claims and Defendants' defenses during the period from August 2022 through August 2024 bears on issues of liability. (Code Civ. Proc., § 2017.010.)

Accordingly, the Court finds that the PMQ failed to answer questions concerning a relevant period identified in the deposition notice, and that no valid protective order relieved Westwood Properties of its obligation to provide responsive testimony.

A further deposition session is therefore warranted.

Request for Sanctions

i. Legal Standard

The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel an answer or production, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Code Civ. Proc., § 2025.480, subd. (j).)

The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed. (Cal. Rules of Court, rule 3.1348, subd. (a).)

ii. Discussion

After review, the Court finds in favor of Plaintiffs as to sanctions of \$1,573.41 against Westwood Properties and counsel of record.

These sanctions are modest and

supported by a declaration from counsel. (Motion, Burton Decl., ¶¶ 16-17.)

Moreover, the sanctions are supported by a basis for sanctionable conduct: failure to respond or submit to an authorized method of discovery re: the 2022 to 2024 time period. (Code Civ. Proc., § 2023.010, subd. (d).)

Sufficient grounds thus exist to grant sanctions.

Last, the Court notes that sanctions are limited to Westwood Properties and not to counsel of record as the notice of motion seeks sanctions against Westwood Properties and “RESNICK & LOUIS, PC” without identifying a specific counsel of record against whom sanctions are sought. (Code Civ. Proc., § 2023.040 [“A request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought”].)

d. Conclusion

Plaintiffs Kimberly Gordon, Lee Quinones, and Madison Quinones's motion to compel deposition and request for monetary sanctions is GRANTED as to compelling a further PMQ deposition session and as to awarding monetary sanctions in the amount of \$1,573.41.

Defendant Westwood Blvd Properties, LLC, is ORDERED to resume the deposition of its PMQ within 30 days of this Order, with the Parties to agree on a date, and to report that date to the Court on September 24, 2026, at an Order to Show Cause re: Deposition Status.

The Clerk SHALL set the Order to Show Cause hearing on calendar for 8:30 AM on September 24, 2026.

Defendant Westwood Blvd Properties, LLC—and not counsel of record—is ORDERED to remit \$1,573.41 to Plaintiff's counsel within 30 days of this Order.

Plaintiffs Kimberly Gordon, Lee Quinones, and Madison Quinones is ordered to give notice.

Parties who intend to submit

on this tentative must send an email to the court at smcdept731@lacourt.org indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.

DATED: September 17, 2026 _____

MARK C. KIM

Judge of the
Superior Court